

complaint

Mr W has complained that he had to make a separate claim to esure Insurance Limited to repair damage to the roof of his car. Mr W says the roof damage was caused by the accident he originally claimed for under his car insurance policy.

background

Mr W was unfortunately involved in an accident on a motorway. Another vehicle lost control and collided with Mr W's car, causing them both to drive onto the grass verge at the side of the motorway.

Mr W reported the accident to esure and it arranged for his car to be inspected. Two engineers said damage to the roof of Mr W's car hadn't been caused by the accident. Mr W didn't agree, so esure instructed an independent engineer to inspect his car.

The independent engineer didn't agree the damage to Mr W's car roof was caused by the accident either. So esure repaired the roof under a separate claim and recorded a second claim against Mr W's record as a 'fault' claim.

The independent engineer reported that Mr W had chosen not to attend when he inspected his car. But Mr W said this wasn't true.

Mr W complained to esure about its decision to deal with the roof damage separately to eh accident related damage. He said he was never given the opportunity to be there when his car was inspected.

esure said its decision was correct as there wasn't any evidence to show it Mr W's car roof had been damaged in the accident. It said the independent engineer didn't contact Mr W before he inspected his car. So it had made an error.

Our investigator didn't feel there was enough to show damage to the roof of Mr W's car had been caused by the accident. But she felt Mr W had lost the opportunity to attend when his car was inspected. So for the loss of expectation she recommended esure pay Mr W £75 compensation. But she believed esure had correctly dealt with the repairs to Mr W's car as two claims.

esure didn't agree. It says even if Mr W had attended the inspection, it wouldn't have changed the outcome as there wasn't any proof the roof damage was accident related.

Mr W didn't agree. He said he has over twenty witnesses that can say his car roof wasn't damaged before the accident happened. The other driver's vehicle kicked up debris from the road as they were both moving over from the accident and this caused damage to the roof.

So as both parties don't agree, the matter has been passed to me to decide.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so, I agree with the investigator's recommendations.

Mr W says he had his car washed on the morning of the accident and a person from the car wash company says his car roof wasn't damaged. His passenger heard noises on the roof which Mr W believes was caused by debris from the road which hit the roof when the collision happened. He's provided photos of the scene to show the debris and tree branches on the ground.

esure sought the advice of two engineers who both said the damage to the roof of Mr W's car was inconsistent with the accident circumstances. As Mr W didn't agree, esure instructed an independent engineer. I think this was reasonable.

Mr W says grooves on his car roof were caused by wood on the road which was damaged by the other driver's vehicle. The other vehicle broke some tree branches which then kicked onto the roof of his car. So the roof damage was caused by the accident.

But the independent engineer found no evidence of damage to the roof consistent with coming into contact with tree branches. He found multiple dents, creases and ripples over the entire roof area of varying severity. So from what he examined, he didn't conclude that the roof damage was caused by the accident.

I know Mr W feels esure hasn't properly investigated the claim. But I think it acted correctly. It obtained a report from an independent engineer who agreed with two other engineers. And it reasonably relied on the independent engineer's report. So I think its decision not to include the roof damage repairs under the accident claim was fair and reasonable.

Even though Mr W's attendance when his car was inspected wouldn't have changed the outcome, the independent engineer said he chose not to attend, which wasn't true. And esure acknowledges this was an error. The engineer should've given Mr W the choice to be there. So for the loss of expectation, I think esure should pay Mr W modest compensation of £75.

my final decision

For the reasons I've given above, my final decision is that I uphold this complaint in part. I require esure Insurance Limited to pay Mr W compensation of £75 for not being given the choice to attend when his car was inspected by an independent engineer.

esure must pay the compensation within 28 days of the date on which we tell it Mr W accepts my final decision. If it pays later than this it must also pay interest on the compensation from the date of my final decision to the date of payment at a simple rate of 8% a year.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr W to accept or reject my decision before 27 November 2017.

Geraldine Newbold
ombudsman